



Tort Law (9th edn)

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p. 608 **20. Vicarious liability**

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Abstract

This chapter examines the principle of vicarious liability, a form of secondary liability through which employers may, in certain circumstances, be liable for the torts of their employees, even though the employer themselves may be entirely blameless. The imposition of vicarious liability is one of the most important exceptions to the general approach of the common law whereby liability for any wrongdoing is imposed on, and only on, the wrongdoer(s). A defendant will not be vicariously liable unless the following conditions are met: (a) there is an employer–employee relationship (or one akin to this) between the defendant and the person for whose actions they are being held liable; and (b) a close connection between this relationship and the tortious wrongdoing of the employee

Keywords: tort law, liability, compensation, damage payments, claim

Problem question

Read this problem question carefully and keep it in mind while you are working through the chapter that follows. At the end of the chapter you will be able to apply what you have learnt to the problem question and advise the relevant parties.

The *Horsechester Arms* is a popular restaurant and bar. Mario, its owner, prides himself on its mellow atmosphere and friendly staff. However, behind the scenes it is a different story.

Qiang, the restaurant's sommelier, and Tadhg, the head chef, have fallen out over Qiang's wine choices for his signature dish. Eventually Tadhg's quick temper gets the better of him—he grabs an empty wine bottle and hits Qiang across the back of the head. Meanwhile, Cadbury Blacker, the local

librarian, is setting up for her regular evening set singing chilled out versions of 90s indie classics. As Tadhg storms out from the kitchen he trips over a lead she has failed to tape down, and twists his ankle. Lux, the restaurant manager, phones Dougal at home to see if he can come in to cover Qiang's shift. Dougal had been expecting to have the night off and had just settled down to watch TV. Though Lux makes it clear he does not have to come in, Dougal is irritated by their request. He cycles to the restaurant and when he gets there he punches them.

Meanwhile, Phoenix is walking around the bar talking to the customers. He is employed as a host to make the guests feel comfortable, and so is a well-known figure at the bar. Bella has been coming to the bar for a few weeks and Phoenix has been particularly welcoming. He often encourages her to stay late to help him tidy up and then gives her a lift home in his sports car. After one such occasion Bella complains that Phoenix has sexually assaulted her. A subsequent criminal investigation upholds her claim.

Advise the parties.

p. 609 20.1 Introduction

Consider the following situations:

- *A young girl is injured when she falls out of a recycling van when the driver negligently speeds round a corner. She was helping the refuse workers on their rounds, against the wishes of their employer.*
- *A school teacher sexually assaults a pupil over several nights during a school trip.¹*
- *An office worker is subjected to a sustained period of homophobic harassment and intimidation by her supervisor.*

Consider the examples above. There are a number of potential civil and criminal claims. Most obviously, the injured girl may wish to sue the driver of the recycling van in negligence, the office worker might bring a claim against his supervisor under the Protection from Harassment Act 1997, while, alongside a criminal prosecution, the school pupil might bring a claim against his teacher in the tort of battery. In each case, the van driver, supervisor and teacher would be both the defendant and the tortfeasor, that is the person who committed the tort. But what of their employers? Might they also be liable? If they've been negligent—for example, in failing to provide a safe place of work—the claimants may argue that they are *personally* liable for their injuries.² However, they may also be liable *vicariously* for their employees' actions.

Vicarious liability is a mechanism by which one person (the defendant) is held liable to a claimant for a tort committed by someone else (the tortfeasor). Its main application is in employment relationships: an employer is vicariously liable for torts committed by their employees in the course of their employment.³

Lord Phillips in *Christian Brothers* described vicarious liability as a doctrine ‘on the move’ (at [19]). Certainly, over the last 20 years the law relating to vicarious liability in tort has been ‘transformed’ and as Paula Giliker notes, this expansion:

has, perhaps unsurprisingly, brought uncertainty, as litigants test its boundaries. This has led to a rapid growth of cases, including six judgments from the House of Lords/Supreme Court between 2001–2017, three Privy Council decisions over the same period, and numerous Court of Appeal and lower court judgments. Attempts by the Supreme Court in 2012 [in *Various Claimants v Catholic Child Welfare Society* [2012], generally known as *Christian Brothers*] to take stock of the law and provide greater guidance, and again in 2016, [in *Cox v Ministry of Justice* [2016] and *Mohamud v WM Morrison Supermarkets plc* [2016]] have failed to stem the flow of cases.⁴

p. 610 More recently, there have been three more Supreme Court judgments—*Barclays Bank plc v Various Claimants* [2020], *WM Morrison Supermarkets plc v Various Claimants* [2020] and *Trustees of the Barry Congregation of Jehovah’s Witnesses (Appellant) v BXB* [2023]—in which the Supreme Court, again, sought to provide some much needed clarity to this area of law.

Watch our video ‘Eight Supreme Court judgments in 19 years—what’s going on?’ where we explore why there have been so many vicarious liability cases reaching the UK’s most senior courts over the last two decades.

Video playback is not supported in this format.

Video 20: Eight Supreme Court judgments in 19 years—what’s going on?

As a form of secondary liability, the imposition of vicarious liability is not predicated on any wrongdoing by the employer—they may well be, and often are, entirely blameless. Rather liability is imposed *vicariously* on the employer for the tortious actions of their employee (who remains primarily liable for their actions, though is typically not worth pursuing for financial reasons). The idea of vicarious liability is then at odds with the general approach of the common law and the principle of corrective justice whereby liability for any wrongdoing is imposed on, and only on, the wrongdoer(s). And as such, its imposition of strict, no-fault liability requires clear and principled justification. Unfortunately, such guidance has largely been unforthcoming. In *Maga v Birmingham Roman Catholic Archdiocese Trustees* [2010], Longmore LJ commented:

[t]here is by no means universal agreement as to what that policy [behind the imposition of vicarious liability] is. Is it that the law should impose liability on someone who can pay rather than someone who cannot? Or is it to encourage employers to be even more vigilant than they would be pursuant to a duty of care? Or is it just a weapon of distributive justice? Academic writers disagree and the House of Lords in *Lister’s* case [*Lister v Hesley Hall Ltd* [2001]] did not give any definitive guidance to lower courts. (at [81])

At its most basic, vicarious liability is a mechanism that ensures a just and practical remedy for harm, while seeking to deter future wrongdoing.⁵ Its development has typically been seen as the result not of ‘any very clear, logical or legal principle, but [of] social convenience and rough justice’ (*Imperial Chemical Industries Ltd v Shatwell* [1965] at 685). Over the years a number of policy objectives or justifications have been offered for the imposition of vicarious liability.⁶

Justifications for the imposition of vicarious liability

- (1) The employer is likely to be in a position to compensate the claimant. They not only have, to use Glanville Williams’s description, ‘a purse worth opening’ or ‘deeper pockets’ than the employee,⁷ but can also be expected to insure against such liability. The presence of liability insurance, in turn, means that vicarious liability acts as ‘a loss-distribution device’ whereby the financial loss arising from the wrongdoing can be spread more widely across the community through insurance premiums and/or higher prices.
- (2) The tort will be committed as a result of activity undertaken by the employee on behalf of the employer or as part of the business of the employer—the so-called ‘enterprise liability’ or ‘delegation of task’ arguments.⁸ These suggest that as employers derive an economic benefit from their employees’ work, they should bear any related burdens: ‘a person who employs others to advance his own economic interest should in fairness be placed under a corresponding liability for losses incurred in the course of the enterprise’.⁹
- (3) ↵ The employer by employing the employee has taken the risk of harm occurring and so, as they either gain a benefit from that risk or because of their role in creating it, they should bear responsibility should the risk materialise.¹⁰
- (4) The employee will have been under the ‘control’ of their employers. The imposition of vicarious liability therefore acts as an incentive ensuring that employers not only maintain standards of ‘good practice’ and take care when making appointments, but explore ways of going beyond those set by the standard of the ‘reasonable person’.

Pause for reflection

Courts and commentators tend to argue that vicarious liability can be justified, if at all, on the basis of a combination of various policy considerations: the desire to spread losses or shift them on to those best positioned to meet them, to encourage greater supervision of workers and so reduce future wrongdoing, and a feeling (which may or may not stand up to close scrutiny) that employers should take the rough with the smooth and so bear the costs as well as enjoying the benefits of the

employees' actions. Yet, while all these provide reasons for requiring the employer to meet their employees' liabilities, the problem is that if we were *really* committed to furthering these particular policies, the law would look very different.

First, these policy considerations cannot explain the particular rules on vicarious liability that the courts have in fact developed. For example, as we will see, vicarious liability depends on the employee actually having committed a tort. But the concern to shift or spread losses applies irrespective of whether the employee acted wrongfully. So, if we really were motivated to impose liability because this would see the losses spread, we would have no reason for limiting vicarious liability to those cases where the employee has caused loss by committing a tort. Instead, we would make the employer liable wherever their employee causes others loss while doing their job. The same goes for the benefit and burden argument. By contrast, the argument that vicarious liability exists to encourage greater supervision by employers of their employees' conduct suggests that liability should be imposed on the employer only where this really would be likely to lead to greater supervision and so a reduction of future harms. Given the practical limitations on an employer to 'control' their employee in the modern-day employment context *and* that most cases of negligence arise from isolated and unpredictable acts of carelessness, which the employer could have done nothing to prevent, it is hard to argue that this policy supports the present practice of imposing vicarious liability in respect of *all* torts committed in the course of employment.

Secondly, these policy considerations extend beyond the employment context. For example, the argument that losses should be spread applies *wherever and however someone is injured* and so is not uniquely applicable when the injury is caused by an employee acting in the course of their employment. Again, if we *really* believed that the law of tort should be concerned with spreading losses, then we would have no reason for making liability in general dependent on a breach of duty or for having a general rule that liability depends on the defendant having caused the relevant loss. If our motivation is to spread losses, it should be irrelevant whether the defendant acted carelessly or whether they were in any way responsible for the loss that was suffered. Instead, we should impose liability on whomever we can find who carries insurance, since this is the best way of seeing the loss spread amongst society. That the law generally attaches liability only to those who actually caused the claimant's loss, and then, again as a general rule, only where their conduct has fallen below a particular standard, tells us that, at root, the law of torts is not designed to spread losses (though it may sometimes have this effect).

The same is true when we look at the other policy justifications for vicarious liability. In each case, a real commitment to furthering these policies would lead not only to changes in the law of vicarious liability but also to a radically different law of tort—indeed, they would require us to view tort law as fundamentally misconceived. But if these policies cannot account for the law of tort *generally*, then we should be suspicious of any attempt to justify particular parts of tort law on this basis. We would be

saying that, though generally these are not the policies which justify tort law as a whole, they do justify (some of) the rules of tort in the employment context. But why here and not elsewhere? We are left with a distinction that appears entirely arbitrary.

Check our **pointers** <<https://iws.oup.support.com/ebook/access/content/horsey9e-student-resources/horsey9e-chapter-20-pointers-to-pause-for-reflection-and-counterpoint-boxes?options=showName>> on how to answer the questions posed in this 'Pause for reflection'.

Counterpoint

Of course, we should feel uncomfortable with the conclusion that an important and long-standing aspect of tort law is arbitrary and unprincipled. As such, lawyers have sought to find an explanation for vicarious liability which is consistent with the basic aims and structure of tort law generally. Perhaps the most important example of this is an argument made by Robert Stevens.¹¹

Robert Stevens suggests that we should not view vicarious liability as an instrument for the law to impose on one person liability for torts committed by another. Rather it is just one particular example of the law on the attribution of *conduct*. What does this mean? The best example of this comes in relation to companies. Companies, as artificial legal constructs, can only 'act' (enter contracts, acquire property, commit torts) through natural persons (i.e. human beings). Accordingly the law needs a set of rules determining whose actions 'count' as the actions of the company; for instance, whose consent is needed for the company to enter into a contract. Stevens argues that we should understand the rules of vicarious liability in the same way. When the law holds an employer vicariously liable it is because the actions of the employee are attributed to the employer. The employee's actions are treated as the actions of the employer, and so torts committed by the employee are regarded as torts committed by the employer.

This suggests that, contrary to appearances, vicarious liability is not an exception to the general rule that the law of tort imposes liability only where the defendant has caused and is responsible for the loss suffered by the claimant. If the employee's actions are treated in law as the employer's

↪ actions, then any harms done by the employee are, at the same time, harms done by the employer. When the employer is held liable, they are accordingly being held liable for *their own* actions.

Unfortunately, this argument does not solve the problems posed by the law on vicarious liability. Even if we accept (and it is not clear why we should) that the law does indeed require, outside the context of companies, rules for the attribution of conduct, the question is why has the law chosen this set of

rules rather than some other? Why should, in the context of employment, the actions of the employee be attributed to (and be regarded as the actions of) the employer? This question is particularly important given that the effect of such rules is that the employer is held legally liable for losses which most of us would regard as caused by, and the responsibility of, someone else.

This question just takes us back to where we started, needing a justification for the rules we have. Stevens's argument, if correct, tells us only what sort of rules these are: namely, rules of attribution. It does not tell us why we have or should embrace this particular set of rules. Unless we are content for the law to be and to appear arbitrary, these questions require an answer. As such, Stevens's argument ultimately fails to take us beyond the unpersuasive combination of policies set out earlier.

A defendant will be vicariously liable where the following conditions are met:

- (1) there is an employer–employee relationship, or one akin to employment, between the defendant and the tortfeasor (stage 1); and
- (2) there is a close connection between that relationship and the tortious wrongdoing of the employee (stage 2).

20.2 Stage 1: A relationship of, or akin to, employment

In order for a defendant to be held vicariously liable for another's act, the two must be in a relationship of employment or one which is regarded as akin to employment. However, identifying when two parties are in such a relationship is not as straightforward as one might expect.¹² Clearly not everyone you pay to do work for you becomes your employee. So, for instance, if you hire a plumber to fix a leaking tap or you take an Uber home, though the plumber and Uber driver are, in a sense, doing work for you, we would not, and the law does not, call them your employees. Historically, this distinction between 'employees' and so-called 'independent contractors' (a general term applied to those who do work for someone but who are not their employees) has been key to the law of vicarious liability. However, while the notion of who is and is not an employee is clear at the extremes, things become more indistinct at the borders, particularly in relation to what used to be called 'atypical' workers—for example, agency workers, homeworkers, part-time workers, the self-employed and 'regular' casual workers.¹³ And, of course, the realities of the so-called 'gig economy' mean that these types of employment relationships are much more common than they once were.¹⁴

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So how does a court determine who is an employee? Traditionally, the courts looked to the level of 'control' the employer exercised, not only over what the potential employee did but over *how* they did it as a way of determining employment status (*Stephenson Jordan & Harrison Ltd v McDonall & Evans* [1952]). However, in a climate where employees are increasingly expected to show—and are rewarded to the extent to which they do show—initiative and exercise discretion, this reflects an outdated view of the workplace. As Lord Richards noted in *Commissioners for His Majesty's Revenue and Customs v Professional Game Match Officials Ltd* [2024]:

there are many occupations in which the employer would not have the practical ability, nor probably the legal right, to intervene during the performance of at least some duties so as to direct the manner in which they were performed. It is hard to see that hospital managers would be entitled to intervene in the performance of an operation which was being carried out in a competent manner or that the managers of an opera house could intervene in the conductor's performance to direct him or her to increase or reduce the tempo. (at [70])

Accordingly, the courts have now taken the view that control is just one of a number of factors considered by the courts when determining a worker's status. Other factors include the extent to which the worker is 'managed' or 'accountable' to the employer, the existence of sufficient mutual obligations, the centrality of their activities to the enterprise of the employer and the integration of their activities to the employer's business (*JGE v The Trustees of the Portsmouth Roman Catholic Diocesan Trust* [2012] at [72]).

***Various Claimants v Catholic Child Welfare Society* [2012] UKSC 56 (SC)**

The case was brought by 170 men who had been sexually and physically abused by members ('the brothers') of a Catholic group—the Brothers of the Christian Schools ('the Institute')—who were employed as teachers at a residential school for children in local authority care attended by the claimants. The abuse was alleged to have taken place over a 40-year period.¹⁵

The first question for the court was whether the relationship between the Institute and the brothers teaching at the school was one that was capable of giving rise to vicarious liability (stage 1). In the Court of Appeal it had been held that, since the brothers were at the time employed by the school, only the school (or, rather, the body managing it)—and so not the Institute—could be vicariously liable. The Supreme Court disagreed, however, holding that *both* the school *and* the Institute were vicariously liable for the abuse the brothers had committed.¹⁶ In reaching this conclusion, the court held that, though the brothers were not employed by the Institute, the relationship between them was nonetheless sufficiently 'akin to' employment as to justify the imposition of vicarious liability (an approach adopted by the Court of Appeal in *JGE v The Trustees of the Portsmouth Roman Catholic Diocesan Trust*¹⁷).

In coming to this conclusion, Lord Phillips identified five 'policy reasons' which support vicarious liability in the context of employment relationships:

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(i) the employer is more likely to have the means to compensate the victim than the employer and can be expected to have insured against that liability; (ii) the tort will have been committed as a result of activity being taken by the employee on behalf of the employer; (iii) the employee's activity is likely to be part of the business activity of the employer; (iv) the employer, by employing the employee to carry on the activity, will have created the risk of the tort committed by the employee; (v) the employee will, to a greater or lesser degree, have been under the control of the employer. (at [35])

It is by reference to these five incidents that certain *non-employment* relationships might nonetheless be treated as *akin* to employment:

Where the defendant and the tortfeasor are not bound by a contract of employment, but their relationship has the same incidents, that relationship can properly give rise to vicarious liability on the ground that it is 'akin to that between an employer and an employee'. (at [47])

It was on this basis that the relationship between the Institute and the brothers was held to be akin to employment: though no contract existed between the Institute and the brothers, the vows the brothers gave to the Institute operated in much the same way, and the work the brothers did at the school was at the Institute's direction and done in furtherance of the Institute's mission and in accordance with its rules (at [56]–[60]):

Provided that a brother was acting for the common purpose of the brothers as an unincorporated association, the relationship between them would be sufficient ... just as in the case of the action of a member of a partnership. Had one of the brothers injured a pedestrian when negligently driving a vehicle owned by the Institute in order to collect groceries for the community few would question that the Institute was vicariously liable for his tort. (at [61])

Lord Phillips went on to address the second stage of the vicarious liability test: whether there was a sufficiently 'close connection' between the acts of abuse and the brothers' employment such as to justify holding the Institute liable for these acts. In finding that the necessary connection had been made out, he continued:

Living cloistered on the school premises were vulnerable boys. They were triply vulnerable. They were vulnerable because they were children in a school; they were vulnerable

↵ because they were virtually prisoners in the school; and they were vulnerable because their personal histories made it even less likely that if they attempted to disclose what was happening to them they would be believed. The brother teachers were placed in the school to care for the educational and religious needs of these pupils. Abusing the boys in their care was diametrically opposed to those objectives but, paradoxically, that very fact was one of the factors that provided the necessary close connection between the abuse and the relationship between the brothers and the Institute that gives rise to vicarious liability on the part of the latter. There was a very close connection between the brother teachers' employment in the school and the sexual abuse that they committed, or must for present purposes be assumed to have committed. (at [92]–[93])

More information on this case is available in this chapter's **web links** <<https://iws.oup.support.com/ebook/access/content/horsey9e-student-resources/horsey9e-chapter-20-web-links?options=showName>>.

Pause for reflection

The impact of the *Christian Brothers* case is far-reaching. As John Bell notes:

[T]he Supreme Court ... rightly side-stepped [the] argument that the peculiar employment situation of a particular helper, such as a celebrity presenting a show for a broadcaster or a repair mechanic sent out under a service contract who is engaged technically on a self-employed basis, can lead the enterprise to evade vicarious liability for the actions of the celebrity or repairman. What weighed with the courts in [the *Christian Brothers* case] and *JGE* is that the abusers were placed by the enterprise, as part of their mission, in a position from which the tortfeasor happened to cause a harm which was a risk inherent in the activity in question.¹⁸

The claims against Blackpool Football Club and Manchester City Football club are, perhaps, cases in point.¹⁹

The 'akin to employment' approach was confirmed by the Supreme Court in *Cox v Ministry of Justice* [2016]. In this case, the Ministry of Justice was held variously liable for the injuries of the catering manager at HM Prison Swansea, who was negligently injured by a prisoner, who was carrying out paid work under

supervision in the kitchen, when he dropped a large bag of rice on her upper back. The prisoner's activity in unloading supplies was 'akin to employment' even though his relationship to the prison was not voluntary. The *Christian Brothers* case had, it was held, developed 'a modern theory of vicarious liability':

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The result of this approach is that a relationship other than one of employment is in principle capable of giving rise to vicarious liability where harm is wrongfully done by an individual who carries on activities as an integral part of the business activities carried on by the defendant
↪ and for its benefit (rather than his activities being entirely attributable to the conduct of a recognisably independent business of his own or of a third party), and where the commission of the wrongful act is a risk created by the defendant by assigning those activities to the individual in question. (Lord Reed at [24])

The court concluded that this approach was satisfied on the facts:

Prisoners working in the prison kitchens ... are integrated into the operation of the prison, so that the activities assigned to them by the prison service form an integral part of the activities which it carries on in the furtherance of its aims: in particular, the activity of providing meals for prisoners. They are placed by the prison service in a position where there is a risk that they may commit a variety of negligent acts within the field of activities assigned to them. That is recognised by the health and safety training which they receive. Furthermore, they work under the direction of prison staff. Mrs Cox [the catering manager] was injured as a result of negligence by Mr Inder [the prisoner] in carrying on the activities assigned to him. The prison service is therefore vicariously liable to her. (Lord Reed at [32])

A further application of this approach by the Supreme Court came in *Armes v Nottinghamshire County Council* [2017]. Here the court held that the relationship between a local authority, responsible for children put into its care, and foster parents, into whose homes those children were placed, was akin to employment, such as to make the authority vicariously liable for abuse carried out by the foster parents.²⁰ The court came to its decision by appealing to the five incidents identified in *Christian Brothers* and concluding that they were all present in the relationship between the authority and the foster parents. In particular, it held that the fact that the child was placed into a foster home in fulfilment of the authority's duty towards children in its care, and that the authority recruited and trained foster carers and paid them allowances, meant that the foster parents played an 'integral part of the local authority's organisation of its child care services' (at [60]). Moreover, while the authority did not micro-manage how the foster parents cared for the children, it nonetheless 'exercised powers of approval, inspection, supervision and removal', which gave it 'a significant degree of control over both what the foster parents did and how they did it' (at [62]).²¹

In *Barclays Bank v Various Claimants* [2020], the Supreme Court once again took the opportunity to provide guidance as when the relationship between the two parties is such that it 'makes it proper for the law to make the one pay for the fault of the other' (Lady Hale at [1]).

***Barclays Bank v Various Claimants* [2020] UKSC 13 (SC)**

The claimants were employees or prospective employees of Barclays and Barclays had arranged for them to have medical examinations with a Dr Bates. It was alleged that the doctor had, during these examinations, sexually assaulted the claimants, who sought to hold Barclays vicariously liable for those assaults. It was accepted that the doctor was not himself a Barclays employee but was instead an independent contractor. Nonetheless, the Court of Appeal had held that Barclays could be vicariously liable for his torts. The Supreme Court allowed Barclays' appeal.

As Lord Reed had held in *Cox*, vicarious liability would attach where the tortfeasor's activities were an integral part of the business activities carried on by the defendant but not where their activities were attributable to the conduct of a recognisably independent business of their own or of a third party. An independent contractor is, necessarily, one acting in the course of an independent business of their own. Dr Bates was never 'anything close to' an employee of Barclays.

He did, of course, do work for the Bank. The Bank made the arrangements for the examinations and sent him the forms to fill in. It therefore chose the questions to which it wanted answers. But the same would be true of many other people who did work for the Bank but were clearly independent contractors, ranging from the company hired to clean its windows to the auditors hired to audit its books ... He was in business on his own account as a medical practitioner with a portfolio of patients and clients. One of those clients was the Bank. (Lady Hale at [28])

There is nothing, Lady Hale held,

in the trilogy of Supreme Court cases [*Christian Brothers*, *Cox* and *Armes*] ... to suggest that the classic distinction between employment and relationships akin or analogous to employment, on the one hand, and the relationship with an independent contractor, on the other hand, has been eroded. ... The question therefore is, as it has always been, whether the tortfeasor is carrying on business on his own account or whether he is in a relationship akin to employment with the defendant. (at [24])

The court also stressed that if it was clear that the tortfeasor was engaged in an independent business of their own, there was no need to consider the five incidents listed in the *Christian Brothers* case. Though 'in doubtful cases' these 'may be helpful in identifying a relationship which is sufficiently analogous to employment to make it fair, just and reasonable to impose vicarious liability' (Lady Hale at [27]).

While *Barclays Bank* sought to provide some much needed clarity as to the limitations of stage 1 of the test for vicarious liability, it is not yet clear how successful it has been. Certainly the lower courts have since adopted a much more restrictive approach to when parties are in a relationship ‘akin to employment’. In *Blackpool FC v DSN* [2021], the Court of Appeal found the club was not vicariously liable for the actions of an unpaid scout (overturning the lower court, decided before *Barclays Bank*). Similarly, in *TVZ and others v Manchester City Football Club Ltd* [2022], Johnson J, somewhat surprisingly, found that Manchester City $\nrightarrow$ Football Club was not vicariously liable for the sexual abuse perpetrated over a number of years by a former football coach and ‘scout’.²² His precise role was in dispute, though it was common ground that he was never an employee of Manchester City. Johnson J held that his relationship with the defendant was not ‘akin to employment’ for a number of reasons, including that the footballing activities had been carried out voluntarily and in his spare time, that many of these were distinct and independent from Manchester City and that there was little evidence of the defendant having any control over his activities (at [309]–[320]):

It is deceptively easy to apply Lord Phillips’ incidents in a way that leads to a conclusion that it is fair, just and reasonable that MCFC [Manchester City Football Club] should be vicariously liable for the activities of Bennell. It is a big, well-resourced club. It could easily meet the liabilities to the claimants, at a fraction of the amount that it pays its star players. Bennell was connected to MCFC. That connection gave him the opportunity to commit grievous acts of abuse against young, innocent, and vulnerable boys. They have no real alternative remedy. However, that is not sufficient to meet the test for vicarious liability. It is not open to a court to impose vicarious liability on the basis of an intuitive feeling for where the justice of a case lies. Rather, it is necessary to apply the tightly controlled tests set down in the authorities, including the corrective guidance in *Barclays Bank*. (at [327])²³

More recently, in *BXB* Lord Burrows returned to the ‘akin to employment’ test, summarising it as follows:

in applying the ‘akin to employment’ aspect of this test, a court needs to consider carefully features of the relationship that are similar to, or different from, a contract of employment. Depending on the facts, relevant features to consider may include: whether the work is being paid for in money or in kind, how integral to the organisation is the work carried out by the tortfeasor, the extent of the defendant’s control over the tortfeasor in carrying out the work, whether the work is being carried out for the defendant’s benefit or in furtherance of the aims of the organisation, what the situation is with regard to appointment and termination, and whether there is a hierarchy of seniority into which the relevant role fits. (at [58(ii)])²⁴

Lord Burrows’ approach was followed by the Court of Appeal in *MXX v A Secondary School* [2023]. PXM, who was 18, had undertaken a week’s unpaid work experience at the school. During this time, he sexually assaulted the claimant, MXX, who was 13.²⁵ While ultimately $\nrightarrow$ the school was not vicariously liable for PXM’s abuse (there not being a sufficiently close connection between his torts and his employment as required by stage 2 of the test for vicarious liability),²⁶ the court agreed that stage 1 was satisfied.

It may be that the school did treat PXM's request as a favour but ... there need not be an alignment between the objectives of the defendant and the tortfeasor. The benefits of the relationship to each may be different. He was carrying out some of the work of the PE department ... and was given responsibility for the same. Providing physical education classes to pupils at the school was a part of the National Curriculum and a part of the business of the school. In that business PXM played a role. The tasks carried out by PXM were for the benefit of the defendant as they released its staff thereby enabling them to spend time on other tasks or with pupils. They were also for the benefit of the pupils who learned sports skills. ... I regard the fact that the defendant had to ensure that PXM was supervised by its staff at all times, and closely directed in any activity which he undertook with a pupil, as demonstrating that PXM was subject to the defendant's close direction and control which is suggestive of an employment type relationship. It was one of the five incidents which Lady Hale identified as being helpful in doubtful cases. (Davies LJ at [66]–[68])²⁷

The court also noted that PXM was 'held out by the defendant as being akin to a member of staff such as a junior teacher or teaching assistant' (at [70]).

Counterpoint

The Supreme Court in *Barclays Bank* confirmed the long-held position that an employer will not be vicariously liable for the torts of independent contractors. As Lord Sumption noted in *Woodland v Essex County Council* [2013], 'the boundaries of vicarious liability have been expanded by recent decisions of the courts to embrace tortfeasors who are not employees of the defendant, but stand in a relationship which is sufficiently analogous to employment ... [referencing *Christian Brothers*]. But it has never extended to the negligence of those who are truly independent contractors' (at [3]).

A defendant may, however, be personally liable for harms resulting from the actions of an independent contractor where the defendant owes what is called a non-delegable duty of care. A non-delegable duty is, in simple terms, a duty not (simply) to take care but to see that care is taken. What this means is that, in cases of non-delegable duties of care, the defendant is unable to discharge their duty by (carefully) entrusting—delegating—responsibility for the discharge of the duty to another. This means that should the person to whom the duty is owed be injured as a result of the carelessness of the person to whom the relevant task has been entrusted, the defendant will be in breach of their duty, notwithstanding that they have exercised reasonable care in the selection of their delegate. Non-delegable duties are owed by employers to their employees (discussed in **Chapter 13**); however, they also arise in other contexts.²⁸

In *Woodland v Essex County Council* [2013], the claimant, then aged 10, suffered a serious brain injury following an incident during a swimming lesson at a local pool, provided by professional swimming instructors employed by the school as independent contractors. Unable to rely on vicarious liability (the swimming instructors were not the school's employees) and/or occupier's liability (the school did not control the premises), it was argued that the school owed the claimant a non-delegable duty

p. 621

of care to ensure that reasonable care was taken of her not only by the school and its employees but also by any third party with which the school contracted to perform its educational functions. The Supreme Court unanimously agreed. Lord Sumption gave the leading judgment, in which he set out the circumstances in which a non-delegable duty will arise (at [22]–[23]) and justifications for the imposition of such duties (at [25]). Lady Hale gave a concurring judgment in which she drew the following analogy:

Consider the cases of three 10-year-old children, Amelia, Belinda and Clara. Amelia's parents send her to a well-known and very expensive independent school. Swimming lessons are among the services offered and the school contracts with another school which has its own swimming pool to provide these. Belinda's parents send her to a large school run by a local education authority which employs a large sports staff to service its schools, including swimming teachers and life-guards. Clara's parents send her to a small state-funded faith school which contracts with an independent service provider to provide swimming lessons and life-guards for its pupils. All three children are injured during a swimming lesson as a result (it must be assumed) of the carelessness either of the swimming teachers or of the life-guards or of both. Would the man on the underground be perplexed to learn that Amelia and Belinda can each sue their own school for compensation but Clara cannot? ...

As lawyers, we know that the three girls fall into three different legal categories. Amelia (we will assume) has the benefit of a contractual obligation of the school to secure that care be taken for her safety. Belinda has the benefit of the rule which makes an employer vicariously liable for the negligence of its employees. Clara has the benefit of neither and can only succeed if the school has an obligation to secure that care be taken for her safety ...

The reason why the ... school is liable is that ... the school has undertaken to teach the pupil, and that responsibility is not discharged simply by choosing apparently competent people to do it. The ... school remains personally responsible to see that care is taken in doing it. (at [30], [32], [34])

p. 622

↩ The parties in *Woodland* returned to court in February 2015, almost 15 years after the accident, to determine the primary facts on which the negligence claim depended (*Woodland v Maxwell and Essex County Council* [2015]). The court held that both the swimming teacher and lifeguard had fallen below the standard of care expected of them and that, following the Supreme Court's ruling, Essex County Council was, as a result, in breach of their non-delegable duty of care towards the claimant. Damages had reportedly been assessed earlier at £3 million. A later judgment found the lifeguard should contribute one-third to the third defendant's liabilities to the claimant both in respect of damage and legal costs. Essex County Council did not seek a contribution from the swimming teacher, who was uninsured at the time of the accident (*Woodland v Maxwell and Essex County Council* (No 2) [2015]).²⁹

It has been suggested that cases such as *Lister* and *Christian Brothers* would be better dealt with through the imposition of a non-delegable duty of care on the defendant.³⁰ This has the advantage of recognising the particular social need—that is, increasing the protection of vulnerable parties in institutional care—without getting distracted by the various policy rationales of vicarious liability. However, moves in this direction seem unlikely. As Giliker notes,

the ‘akin to employment’ test continues to be interpreted generously in sexual abuse cases, then there is little incentive to argue for an extension to the non-delegable duty principle at least in this context. ..., even for cases where it may now be more difficult to establish a relationship ‘akin to employment’, litigants will face an area of law that remains under-developed and inevitably lack of authority will discourage claims ... At best, then, we can only say that the reining in of the relationship test might give encouragement to parties to raise non-delegable duties arguments, but it is hardly a game-changer.³¹

Test your understanding by trying this section’s self-test questions <<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-self-test-questions-20-2>>.

20.3 Stage 2: A close connection between the employer–employee relationship and the tortious wrongdoing of the employee

p. 623 An employer cannot be vicariously liable unless their employee commits a tort. If they did not, there is nothing for their employer to be vicariously liable for.³² Over the years, while many cases have involved the tort of negligence, it is clear that an employer may also be vicariously liable for an employee’s intentional acts including battery (*Mattis v Pollock (t/a Flamingos Nightclub)* [2003]), sexual assaults (*Lister v Hesley Hall Ltd* [2002], *Christian Brothers*), stealing (*Morris v CW Martin* [1966]; *Brink’s Global Services Inc v Igrox Ltd* [2009]), harassment (*Majrowski v Guy’s and St Thomas’ NHS Trust* [2006]) and misuse of private information (*WM Morrison Supermarkets plc v Various Claimants* [2020]).

Historically, an employer would only be vicariously liable for torts committed by an employee if the tort was committed ‘in the course’ or ‘within the scope’ of their employment. This too has been somewhat broadened in recent years. Traditionally when making assessments as to when an employee is acting in the course of their employment, the courts relied on the so-called ‘Salmond test’ which asked whether the employee’s act was ‘a wrongful and unauthorised mode of doing some act authorised by the master’.³³ This test was rejected by the House of Lords in *Lister* in favour of a ‘close connection’ test.

***Lister v Hesley Hall Ltd* [2001] UKHL 22 (HL)**

Mr Grain was employed by Hesley Hall Ltd as the warden of a residential facility attached to a school, which specialised in teaching children with emotional and behavioural difficulties. Its purpose was to provide the children with a homely and caring setting—beyond and distinct from their school environment—in which to adjust to everyday living. The warden was responsible for the discipline and day-to-day running of the house. Over the course of four years he systematically sexually abused a number of boys, including the claimants.³⁴ The claim that the defendants, the warden's employers, were personally negligent in their care, selection and control of the warden was rejected at first instance and was not pursued further. The question for the House of Lords was whether they were vicariously liable for the warden's acts of abuse.

A unanimous House of Lords held that the warden's actions were 'so closely connected' with his employment that it would be fair and just to hold the employers vicariously liable. Though 'sexual abuse is a particularly offensive and criminal act of personal gratification on the part of its perpetrator and therefore could be easily described as the paradigm of those acts which an employee could not conceivably be employed to do' (at [53]), the sexual abuse in this case 'was inextricably interwoven with the carrying out by the warden of his duties' (Lord Steyn at [28]).

Pause for reflection

It has been suggested that 'the facts in *Lister* shouted vicarious liability so loudly the outcome was obvious the moment the Lords freed themselves from the wooden reading of the Salmond test'.³⁵ Do you agree? Would your answer differ if the defendant was a non-profit organisation or religious community rather than a commercial enterprise? Think again about ↵ the justifications for the imposition of vicarious liability, particularly in relation to the allocation of risk. Is there a difference between a charity (which is not seeking to make a profit) and a company (which derives an economic benefit from their employee's work and is more easily able to spread the loss through liability insurance or higher prices) bearing the risk of an employee's deliberate wrongdoing?

The difficulty is that the 'close connection' test in *Lister* is easier to state than apply. As Giliker noted back in 2002, it simply prompts a further question: how closely connected to their employment do the employee's actions need to be?³⁶ By 2012, Lord Phillips was of the view that the 'test of "close connection" approved by all tells one nothing about the nature of the connection' (*Christian Brothers* at [74]). Over a decade later in *BXB*, Lord Burrows adopted Lord Nicholls' words in *Dubai Aluminium Co Ltd v Salaam* [2002] to refer to the test as being inevitably 'imprecise' (at [33]).

In 2016, the question as to what amounts to a sufficiently close connection between the employee's tort and their employment returned once again to the Supreme Court. In *Mohamud v WM Morrison Supermarkets plc* [2016], a petrol station attendant verbally and physically assaulted the claimant, who was of Somali origin, on the garage forecourt in a brutal racist and unprovoked attack.³⁷ Finding his employer vicariously liable for his attack, Lord Toulson held that, applying *Lister*, the court had 'in the simplest terms' to consider two matters:

The first question is what functions or 'field of activities' have been entrusted by the employer to the employee, or, in everyday language, what was the nature of his job. ... Secondly, the court must decide whether there was sufficient connection between the position in which he was employed and his wrongful conduct to make it right for the employer to be held liable under the principle of social justice. (at [44]–[45])

He concluded that the kiosk attendant's actions amounted to a foul-mouthed and violent means of ensuring that the claimant left the premises, whether or not he was motivated by 'personal racism rather than a desire to benefit his employer's business', which looked obviously to be the case (at [48]). Lord Toulson continued:

when ... [he] followed the claimant back to his car and opened the front passenger door, he again told the claimant in threatening words that he was never to come back to the petrol station. This was not something personal between them; it was an order to keep away from his employer's premises, which he reinforced by violence. In giving such an order he was purporting to act about his employer's business. It was a gross abuse of his position, but it was in connection with the business in which he was employed to serve customers. His employers entrusted him with that position and it is just that as between them and the claimant, they should be held responsible for their employee's abuse of it. (at [47])

Mohamud was widely criticised for making the second stage of the test for vicarious liability too easy to satisfy.³⁸ Unsurprisingly, then the stage 2 'connection' test was considered again by the Supreme Court just four years later. In *WM Morrison Supermarkets plc v Various Claimants* [2020], the court took the opportunity, in the words of Lord Reed, to 'address the misunderstandings which have arisen since its decision in the case of *Mohamud*' (Lord Reed at [1]).

***WM Morrison Supermarkets plc v Various Claimants* [2020] UKSC 12 (SC)**

Skelton, a disgruntled Morrison's employee, had been entrusted with payroll data which he was to submit to Morrison's auditor. He did this, but also made a copy of the data which he then made publicly available on a file-sharing website, in breach of section 4(4) of the Data Protection Act 1998. The key question for the court was whether Skelton's disclosure of the data 'was so closely connected

with acts he was authorised to do that, for the purposes of the liability of his employer to third parties, [it] may fairly and properly be regarded as done by him while acting in the ordinary course of his employment' (at [32]).

While Skelton's leak of the data could be said to have been the culmination of a sequence of events starting with his receiving this data in his capacity as a Morrison's employee, the court considered that his torts were nonetheless not committed in the course of that employment. In answering this question, and contrary to the suggestion of Lord Toulson in *Mohamud*, the tortfeasor's motives—in the sense of whether he was doing his employer's business or acting for his own personal reasons—was an important consideration: 'it is abundantly clear that Skelton was not engaged in furthering his employer's business when he committed the wrongdoing in question. On the contrary, he was pursuing a personal vendetta, seeking vengeance for the disciplinary proceedings some months earlier' (at [47]).

The court also confirmed that Lord Phillips's five 'incidents' were only relevant to stage 1 of the test for vicarious liability, that is when determining whether the relationship between the tortfeasor and defendant is 'akin to employment', with an exception for sexual abuse cases where a 'more tailored' version of the 'close connection test' is needed (Lord Reed at [31], [23]).

Pause for reflection

While the claim for vicarious liability failed in *WM Morrison*, it nonetheless makes clear that the fact that an employee is engaged in *intentional* wrongdoing will not necessarily mean they are acting outside the course of their employment. In *Rose v Plenty* [1976], for example, despite strict instructions to the contrary, a milkman allowed a boy to help him deliver the milk and to
 ↪ accompany him on his rounds. The milkman's employer was held vicariously liable for injuries the boy suffered when he fell from the milk float as a result of the milkman's negligent driving. Similarly, in *Lister* Lord Millett was clear that:

It is no answer to say that the employee was guilty of intentional wrongdoing, or that his act was not merely tortious but criminal, or that he was acting exclusively for his own benefit, or that he was acting contrary to express instructions, or that his conduct was the very negation of his employer's duty. (at [79])

And so an employer may instruct their employee to take reasonable care or not do a specific intentional act, but if the employee nonetheless goes on to do the very thing they have been told not to do (and this amounts to a tort), the employer cannot rely on the argument that, far from doing their job, the employee was doing the very thing they had been instructed not to do.

In *Wendall v Barchester Healthcare Ltd*; *Wallbank v Wallbank Fox Designs Ltd* [2012] the Court of Appeal heard two cases falling either side of the line. In *Wendall*, the employer was not liable for an employee's unprovoked, very violent—and criminal—reaction³⁹ to a colleague's perfectly reasonable query as to whether he might work an extra shift, while in *Wallbank* the employer was vicariously liable for the actions of an employee who was 'not a wholly satisfactory employee' and who had assaulted the claimant, his manager, after being told to 'come on' (that is, to speed up) when loading metal frames into an oven. The employee reacted by throwing him 12 feet across the room.⁴⁰ Pill LJ observed:

The possibility of friction is inherent in any employment relationship but particularly one in a factory, even a small factory, where instant instructions and quick reactions are required. Frustrations which lead to a reaction involving some violence are predictable. The risk of an over-robust reaction to an instruction is a risk created by the employment. It may be reasonably incidental to the employment rather than unrelated to or independent of it. (at [57])

More recently in *Levitt v Euro Building and Maintenance Contractors Ltd* [2019], the employer was vicariously liable for the actions of an employee who hit another on the back of the head with a scaffolding pole during the course of a fight.⁴¹ The violent act was 'the end point, in an unbroken series of events which emanated from the original argument on the scaffolding concerning the work or work materials' (at [88]).

Do you think this is fair on employers? While it would clearly defeat the purpose of vicarious liability if the fact that conduct was prohibited by the employer meant that the employee's action would automatically fall outside the course of their employment—few employers explicitly authorise the commission of torts by their employees; in fact most do quite the opposite—if an employer has done all they could reasonably be expected to do, is making them vicariously liable for their employee's (prohibited) actions justified?

p. 627 ↩ Despite taking a stricter view on the close connection test, the Supreme Court in *WM Morrison* went to great lengths to support Lord Toulson's judgment in *Mohamud*. Lord Reed was clear that:

Lord Toulson's judgment was not intended to effect a change in the law of vicarious liability: quite the contrary. That becomes clear if the judgment is read as a whole, as I shall explain. The judgments below focused on the final paragraphs, in which Lord Toulson summarised long-established principles in the simplest terms and applied them to the facts of the case then before the court. A few phrases in those paragraphs, taken out of context, were treated as establishing legal principles: principles which would represent a departure from the precedents which Lord Toulson was expressly following ... Lord Toulson was not suggesting any departure from the approach adopted in *Lister* and *Dubai Aluminium*. His position was the exact opposite. Nor was he suggesting that all that was involved in determining whether an employer was vicariously liable was for the court to consider whether there was a temporal or causal connection between the employment and the wrongdoing, and whether it was right for the employer to be held liable as a matter of social justice. Plainly, the close connection test is not merely a question of timing or causation, and ... vicarious liability for wrongdoing by an employee is not determined according to individual judges' sense of social justice. (at [17], [26])

Mohamud was not, Lord Reed suggested, wrongly decided, just misunderstood.⁴² However, it is certainly the case that the 'restatement' in *WM Morrison* of the second stage test as requiring a 'close connection' is a return to the narrower formulation of the test found in *Lister* and *Dubai Aluminium*, in contrast to Lord Toulson's broader formulation in *Mohamud*.

Pause for reflection

While the Supreme Court's decision in *WM Morrison* was 'welcomed by many as a sign that the Court is ready to apply the brakes to [an] area' that has been on the move for some time,⁴³ Giliker argues that in its attempt to 'calm the waters disturbed by the (perceived) approach of Lord Toulson' and resolve the 'misunderstandings' in *Mohamud*,⁴⁴ Lord Reed's judgment created even more confusion. Not least the suggestion that sexual abuse cases should be treated as a separate category of claims. More fundamentally, she continues:

The Supreme Court, despite its lack of citation of commentary, was clearly aware of criticism that the Toulson simplified test [in *Mohamud*] was too generous and that the lower courts were interpreting the connection test extremely liberally ... To respond to such concerns on the basis they represent a ‘misunderstanding’ of the law and derive in part from reading judgments out of context represents a matter of concern. As common lawyers, we rely on our apex courts for guidance. We are taught at an early age to identify the *ratio decidendi* of a case and to construe precedent carefully. ... If a Court can simply argue at a later date that its express words have been misunderstood and taken out of context, then there is a danger that this relationship of trust will be detrimentally affected. It creates uncertainty in the law and encourages legal challenge. ... objectively, it is misleading to suggest that [WM] *Morrison* merely explains *Mohamud* to a confused audience. It changes the law. The reality is that *Mohamud* represented a false step in the law. It should therefore have been overturned in favour of a more traditional interpretation of the ‘close connection’ test. It may be argued that this, de facto, is what the Supreme Court has achieved, albeit in a more subtle and tactful fashion without the embarrassment of formally overturning its previous decision. I have no doubt that this is the intention of the Court. Subtlety and tact, however, come at a price.⁴⁵

A price at least part of which appears to be yet another case on vicarious liability reaching the Supreme Court just three years later: *Trustees of the Barry Congregation of Jehovah’s Witnesses v BXB* [2023].

***Trustees of the Barry Congregation of Jehovah’s Witnesses v BXB* [2023] UKSC 15 (SC)**

The claimant met Mark Sewell and his wife, Mary, and their children in 1984 after she began attending the services of the Barry Congregation of Jehovah’s Witnesses. The families were close, and Mrs B considered Mark Sewell, who was an elder at the Church, to be her best friend. Towards the end of 1989, Mark Sewell’s behaviour changed. He began drinking heavily and appeared depressed. He began flirting with Mrs B, including hugging and kissing her and holding her hand, and on one occasion asked her to run away with him. Mrs B spoke to Mark Sewell’s father, who was also an elder at the Church, who explained that Mark Sewell was suffering from depression and needed love and support. It was accepted that had it not been for this advice, and the fact that Mark Sewell was an elder, the friendship would have ended. A few months later, after a morning spent evangelising and a pub lunch with the families, Mr and Mrs B returned to the Sewells’ home. Mary Sewell asked Mrs B to see if she could convince Mark Sewell to talk to the elders about his depression. Mrs B went into a back room to speak to Mark Sewell, where upon he pushed her to the floor and raped her.⁴⁶

The question for the court was whether the Jehovah's Witness organisation was vicariously liable for Mark Sewell's actions. The Supreme Court held that it was not.⁴⁷

While the relationship between the Jehovah's Witness organisation and Mark Sewell was one akin to employment,⁴⁸ applying a (slightly revised) close connection test—that is, 'whether the wrongful conduct was so closely connected with acts that the tortfeasor was authorised to do that it can fairly and properly be regarded as done by the tortfeasor while acting in the course of the tortfeasor's employment or quasi-employment' (at [58](iii))⁴⁹—Lord Burrows concluded that the rape was not sufficiently closely connected to his quasi-employment as an elder. He pointed to the following factors:

[(i)] the rape was not committed while Mark Sewell was carrying out any activities as an elder on behalf of the Jehovah's Witnesses ... [(ii)] at the time of the rape, Mark Sewell was not exercising control over Mrs B because of his position as an elder ... [T]he primary reason that the rape took place was not because Mark Sewell was abusing his position as an elder but because he was abusing his position as a close friend of Mrs B when she was trying to help him ... [(iii)] it is not realistic to argue that Mark Sewell was wearing his metaphorical uniform as an elder at the time the tort was committed ... [(iv)] while Mark Sewell's role as an elder was a 'but for' cause of Mrs B's continued friendship with Mark Sewell and hence of her being with him in the back room where the rape occurred ... 'but for' causation is insufficient to satisfy the close connection test [(v)] the violent and appalling rape was not an objectively obvious progression from what had gone before but was rather a shocking one-off attack ... [(vi)] finally, the role played by Tony Sewell [Mark Sewell's father] or the fact that inappropriate kissing on the lips with female members of the congregation when welcoming them was not condemned [is of] no relevance, except as background. (at [73]–[79])

As a 'final check', Lord Burrows continued:

if I stand back and consider the policy of enterprise liability or risk that may be said to underpin vicarious liability ... that consideration of policy confirms that there is no convincing justification for the Jehovah's Witness organisation to bear the cost or risk of the rape committed by Mark Sewell. Clearly the Jehovah's Witness organisation has deeper pockets than Mark Sewell. But that is not a justification for extending vicarious liability beyond its principled boundaries. (at [82])

The court also confirmed that there was no 'tailored test for' sexual abuse cases.⁵⁰ 'The idea that the law still needs tailoring to deal with sexual abuse cases is misleading. The necessary tailoring is already reflected in, and embraced by, the modern tests' (at [58](v)).

Pause for reflection

In making clear that cases involving sexual abuse should not be treated as a separate category of claims, Lord Burrows was seeking to resolve ongoing uncertainty around the application of the close connection test in sexual abuse cases (after Lord Reed had suggested in *WM Morrison* that ‘a more tailored version’ of the test applied in such cases (at [36])). However, Jeremy Letwin and William Peck argue that Lord Burrows’ decision to draw ‘together recent case law into a grand unified theory of the “close connection” test’, in fact, creates more uncertainty in this context (as well as in relation to its application more generally).⁵¹

In particular, they point to the categorisation of Mark Sewell’s rape of Mrs B as a ‘one-off attack’ (at [78])—despite the fact he had made earlier inappropriate sexual advances towards Mrs B and others in the congregation—and the suggestion that he was not at the time wearing his ‘metaphorical uniform’ as an elder (at [76]) but rather acting as a close friend. Not only had Mrs B and her family spent the morning before the rape took place involved in religious activity with Mr and Mrs Sewell, but also the place where the rape took place was regularly used for religious study. Moreover, it was not obvious that Mrs B was at Mr Sewell’s house because they were ‘close friends’—in fact, quite the opposite: she had been told to maintain the friendship by another elder in the church. Lord Burrows’ recognition that Mark Sewell’s role as an elder was recognised as ‘a but for’ cause of the rape (at [77]) underlines this.

Lord Burrows’ approach can be contrasted with that of Davies LJ who, in the leading judgment in *BXB* in the Court of Appeal, suggested that ‘in cases of this kind, the test is more open textured and requires an analysis of all aspects of the relationship between the tort and the abuser’s status’ (at [83]). She continued:

Contained within the tailored test in cases of sexual abuse is the concept of the conferral of authority upon the tortfeasor by the defendant. ... The issue is the connection between the abuse and the relationship between the tortfeasor and the defendant. ... On the facts of this claim, what is relevant for the purpose of the close connection test is the conferral of authority by the Jehovah's Witness organisation upon its elders, coupled with the opportunity for physical proximity as between an elder and publishers in the congregation. ... Mark Sewell's status as an elder was one factor in the couple's developing relationship and that Mrs B tolerated Mark Sewell's inappropriate behaviour towards her because Mark Sewell was an elder, which meant that she assumed he would be acting from pure motives and that there could be repercussions if she were to call out his inappropriate behaviour ... Of particular note is the [trial] judge's identification of Mark Sewell's perception of the significance of his status as an elder, reflected in his response when confronted by Mrs B about his sexual abuse of CXC [a 14-year-old girl who was also a member of the congregation], namely that 'he told us he could do what he liked because he was an elder and that he was not answerable to us'. ... Quite simply, had Mrs B felt able to end the friendship at an earlier time, Mark Sewell would not have been able to continue his close proximity to Mrs B and she would not have felt compelled to tolerate his increasingly inappropriate and unbearable behaviour because he was an elder. (at [84]–[87])

Letwin and Peck argue that though Lord Burrow's 'presents the Supreme Court's judgment as a mere restatement of well-established principles ... In reality, however, the judgment is highly innovative'.⁵² Whose view do you find most persuasive?

p. 631 ↩ So where does this leave us? Giliker is clear: 'While ... the UKSC seems resolute not to overturn *Mohamud*, its precedential value is now premised on a very narrow reading of the case ... *BXB* amounts to a further attempt by the UKSC to slow down the momentum of vicarious liability and reinstate guiding principles to provide greater certainty and predictability to the law'.⁵³ Whether it succeeds in its aim remains to be seen.

Test your understanding by trying this section's self-test questions <<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-self-test-questions-20-3>>.

20.4 Conclusion

The doctrine of vicarious liability imposes liability on the employer *without fault* on the part of the employer. It has been one of the most uncertain areas of tort law in recent years. The two-stage test, while easy to state—an employer will be vicariously liable for the actions of their employee, or someone who is in a relationship 'akin' to employment, where there is a close connection between this relationship and the tortious

wrongdoing of the employee—has proven far harder to apply. Despite the Supreme Court’s attempt in *Barclays Bank* and *WM Morrison* and now *BXB* to clarify the approach to be taken, it seems likely that this uncertainty will continue for some time yet.

End-of-chapter questions

After reading the chapter carefully, try answering the questions which follow.

- 1 In what circumstances will an employer be liable for the actions of an employee? How far, if at all, should this extend to cover things that the employee has been expressly forbidden by the employer to do?
- 2 How, if at all, can the imposition of vicarious liability on a blameless employer be justified?

If you would like to know what we think, check the **answer guidance** [_<https://iws.oup.support.com/ebook/access/content/horsey9e-student-resources/horsey9e-chapter-20-answers-to-end-of-chapter-questions?options=showName>.](https://iws.oup.support.com/ebook/access/content/horsey9e-student-resources/horsey9e-chapter-20-answers-to-end-of-chapter-questions?options=showName)

Answering the problem question

Consider again the problem question at the start of this chapter. Now having read about the topic, **what would be your advice to the various parties?**

Here are some pointers to get you started:

- In order for Mario to be liable for Tadhg’s actions you should establish that he is an employee (you are told he is), that he has committed a tort (hitting Qiang over the head is a battery) and that this is in the course of his employment. This latter aspect is the most controversial but is likely—on recent case law—to be established.
- In contrast, the claim in respect of Cadbury Blacker’s actions will turn on whether she is an employee or in a relationship akin to employment and whether she has committed a tort (i.e. whether she has been negligent in failing to tape the lead down).

If you need some more guidance:

- See the **annotated version of the problem with issues and cases to consider** [_<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-chapter-20-annotated-problem-question-interactive>.](https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-chapter-20-annotated-problem-question-interactive)
- Check your answer against the **suggested outline answer** [_<https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-chapter-20-answers-to-problem-question>.](https://iws.oup.support.com/embed/access/content/horsey9e-student-resources/horsey9e-chapter-20-answers-to-problem-question)

p. 632 Further reading

The best place to start your further reading is with Paula Giliker's 2021 article which considers the decisions in *Barclays Bank* and *WM Morrison*.

Bell, Andrew J 'Plus ça change, plus c'est la Vicarious Liability' (2020) 36 Journal of Professional Negligence 150

Giliker, Paula 'Can the Supreme Court Halt the Ongoing Expansion of Vicarious Liability: *Barclays* and *Morrison* in the UK Supreme Court?' (2021) 37 Tottel's Journal of Professional Negligence 55

Giliker, Paula 'Vicarious Liability in the UK Supreme Court and High Court of Australia: *Trustees of the Barry Congregation of Jehovah's Witnesses v BXB* [2023] UKSC 15; *CCIG Investments Pty Ltd v Schokman* [2023] HCA 21' (2024) 44 Legal Studies 191

Letwin, Jeremy and William Peck 'A Grand Unified Theory for the "Close Connection Test" in Vicarious Liability Cases' [2023] Cambridge Law Journal 388

Morgan, Phillip 'Vicarious Liability on the Move' (2013) 129 Law Quarterly Review 139

Morgan, Phillip 'Certainty in Vicarious Liability: A Quest for a Chimaera?' [2016] Cambridge Law Journal 202

Nolan, Donal 'Reining in Vicarious Liability' [2020] Industrial Law Journal 609

Stevens, Robert 'Non-Delegable Duties and Vicarious Liability' in Jason Neyers, Erika Chamberlain and Stephen Pitel (eds) *Emerging Issues in Tort Law* (Hart 2007)

Todd, Paul 'Vicarious Liability on the Move But Where Should it Stop?' (2020) 7(1) Journal of International and Comparative Law 1

Williams, Glanville 'Liability for Independent Contractors' [1956] Cambridge Law Journal 180

Additional suggestions for further reading can be found in this chapter's **web links** <<https://iws.oup.support.com/ebook/access/content/horsey9e-student-resources/horsey9e-chapter-20-web-links?options=showName>>.

Notes

¹ A number of cases in this chapter involve discussions of physical and sexual abuse, including rape and child abuse. Please be aware of this as you read the judgments and surrounding commentary. Do take a break and seek support from someone you trust if you need to.

² See further **Chapter 13**.

³ As we shall see, there has recently been a significant expansion of vicarious liability beyond employment relationships to other relationships which are, in the relevant sense, akin to employment. Nonetheless, for simplicity, in this chapter we will refer to the defendant as 'the employer' and the tortfeasor as 'the employee'.

⁴ Paula Giliker 'Can the Supreme Court Halt the Ongoing Expansion of Vicarious Liability: *Barclays* and *Morrison* in the UK Supreme Court?' (2021) 37 Tottel's Journal of Professional Negligence 55, 55.

- ⁵ See e.g. Lord Nicholls in *Majrowski v Guy's and St Thomas' NHS Trust* [2006] at [9].
- ⁶ See further Lord Phillips in ***Christian Brothers*** at [34]–[35] (discussed in **section 20.2**) and Lord Reed in *Cox v Ministry of Justice* [2016] at [19]–[24].
- ⁷ Glanville Williams 'Liability for Independent Contractors' [1956] Cambridge Law Journal 180.
- ⁸ John Bell 'The Basis of Vicarious Liability' [2013] Cambridge Law Journal 17, 18.
- ⁹ John Fleming *The Law of Torts* (9th edn LBC Information Services 1998) 410.
- ¹⁰ In ***Christian Brothers***, Lord Phillips combined the second and third justifications to suggest that '[v]icarious liability is imposed where a defendant, whose relationship with the abuser put it in a position to use the abuser to carry on its business or to further its own interests, has done so in a manner which has created or significantly enhanced the risk that the victim or victims would suffer the relevant abuse' (at [86]) (see further Bell **n8**).
- ¹¹ Robert Stevens *Torts and Rights* (OUP 2007) 257–74.
- ¹² See further *Pimlico Plumbers Ltd v Smith* [2018], *Uber BV and others v Aslam and others* [2021] and *Commissioners for His Majesty's Revenue and Customs v Professional Game Match Officials Ltd* [2024] for examples as to how the Supreme Court has determined employment status in other contexts.
- ¹³ Ewan McKendrick 'Vicarious Liability and Independent Contractors—A Re-Examination' (1990) 53 *Modern Law Review* 770, 770.
- ¹⁴ It also used to be the case that an employee could not have more than one employer (for the purposes of vicarious liability) (*Laugher v Pointer* [1826]). However, attitudes towards the possibility of liability of multiple parties have changed and this view has now been rejected by the Court of Appeal in *Viasystems (Tyneside) Ltd v Thermal Transfer (Northern) Ltd and others* [2005] where two different employers were held vicariously liable for the negligence of a fitter's mate who caused a flood in a factory.
- ¹⁵ In 1990, the school's headmaster, Brother James, was expelled from the Institute after it was discovered that he had systematically sexually abused boys in his care over a 20-year period. He was later convicted of numerous serious sexual offences against the boys at the school. The school closed in 1994.
- ¹⁶ Historically, dual vicarious liability was not permitted: an employee 'is the servant of one or the other, but not the servant of one and the other; the law does not recognise several liability in two principals who are unconnected' (*Laugher v Pointer* [1826]).
- ¹⁷ This case was the first to consider the essential elements of the employer–employee relationship (stage 1) in the context of allegations of sexual abuse against Roman Catholic priests. This had been conceded in previous cases. See further Janet O'Sullivan 'The Sins of the Father—Vicarious Liability Extended' [2012] Cambridge Law Journal 485.
- ¹⁸ Bell **n8** 20.
- ¹⁹ *Blackpool FC v DSN* [2021]; *TVZ and others v Manchester City Football Club Ltd* [2022] discussed later in **section 20.2**. See also Joshua Rozenberg, 'Analysis: Jimmy Savile and the complex question of victim compensation' *The Guardian* 26 February 2015 and, more recently, Harrods' acceptance of vicarious liability in relation to the allegations of serious sexual abuse by Mohamed Al Fayed (Bianca Castro 'Harrods to face civil claims over allegations of rape and sexual assault by former boss Mohamed Al Fayed' *Law Society Gazette* 20 September 2024).

^{20.} *Armes* left open the possibility of whether a local authority can be vicariously liable for torts committed against a child by a foster carer who is related to the child. This was considered by the Court of Appeal in *DJ v Barnsley Metropolitan District Council* [2024]. DJ was fostered by his aunt and uncle, Mrs and Mr G. Some years later, DJ alleged he had been regularly sexually assaulted by Mr G. While the court found on the facts that the relationship between the council and Mr G was one akin to employment (and that the council were vicariously liable for Mr G's actions), it was keen to stress that it was 'not laying down a general rule that a local authority will always be vicariously liable for torts committed by foster carers who are related to the child' and made no ruling on the position in relation to liability under the present legislation (at [69]).

^{21.} The Supreme Court refused to find that the local authority owed a non-delegable duty of care to the claimant, on the basis that such a duty would come into conflict with the authority's duty to act in the best interests of children in its care. The child's best interests would sometimes require allowing them to stay with their families or friends. Yet, if the authority was to be liable for the tortious acts of those family members and friends, its own interest in avoiding liability would steer it away from allowing the children to stay with them. See further Simon Deakin 'Organisational Torts: Vicarious Liability versus Non-Delegable Duty' [2018] *Cambridge Law Journal* 15.

^{22.} Barry Benell was a football coach and scout during the 1970s and 1980s. He is currently serving a 34-year jail term after being convicted on five separate occasions of child sexual abuse offences against 22 boys. In 2019, Manchester City, whilst denying liability for the abuse committed, set up the 'Manchester City FC Survivors' Scheme' to offer compensation, counselling and personal apologies to survivors as 'an alternative to often lengthy, costly and arduous litigation processes' (Statement from Manchester City FC Board of Directors, 17 March 2021).

^{23.} The judge also held that it was not equitable to disapply the limitation period (at [570]). The claimants have indicated that they intend to appeal.

^{24.} It is worth noting, Giliker suggests, the 'greater reference' placed by Lord Burrows:

to the characteristics of a contract of employment (eg remuneration; appointment/termination provisions). There is, unlike [Lord Phillips in *Christian Brothers*], no reference to the deeper pocket argument nor any mention of enterprise risk. These factors self-evidently favour practical resemblances to the contract of employment over policy. (Paula Giliker 'Vicarious Liability in the UK Supreme Court and High Court of Australia: *Trustees of the Barry Congregation of Jehovah's Witnesses v BXB* [2023] UKSC 15; *CCIG Investments Pty Ltd v Schokman* [2023] HCA 21' (2024) 44 *Legal Studies* 191, 194)

^{25.} He later pleaded guilty to sexual activity with a child.

^{26.} Davies LJ continued:

He had no caring or pastoral responsibility for the pupils ... PXM's access to the claimant at school was limited as he was, or should have been, kept under close supervision at all times. Even allowing for the fact that PXM was to be addressed as if he was a member of staff, he held no position of authority over the pupils in the school. It was not until PXM left the school that any communication took place on Facebook and such communication was specifically prohibited by the school. ... [G]iven the limited nature of PXM's role during the course of one week, the facts do not begin to satisfy the requirements of the close connection test. The grooming which led to the sexual offending was not inextricably woven with the carrying out by PXM of his work during his week at the defendant's school such that it would be fair and just to hold the defendant vicariously liable for the acts of PXM. (at [87]–[88])

²⁷ Unusually, the Court of Appeal also overturned a number of findings of fact of the trial judge.

²⁸ See e.g. *Hopkins (A Child) v Akramy* [2020] where the court held that the Primary Care Trust did not owe a non-delegable duty of care to protect NHS patients from harm, including harm from the negligent provision of primary medical services by a third party. Where a statute provides that a duty is delegable, the common law cannot override it (at [74]). The court drew a distinction between situations where there was a duty to provide care personally (as in *Woodland*) which is non-delegable and a duty to arrange for services to be provided (as in *Myton v Woods* [1980] and as was the case here) in which there is no common law non-delegable duty of care.

²⁹ In *Armes v Nottinghamshire County Council* [2017], the Supreme Court refused to find that a local authority owed a non-delegable duty of care to the claimant, who was physically and emotionally abused by two sets of foster parents, with whom the authority placed her. The court concluded that such a duty would come into conflict with the authority's duty to act in the best interests of children in its care. The child's best interests would sometimes require allowing them to stay with their families or friends. Yet, if the authority was to be liable for the tortious acts of those family members and friends, its own interest in avoiding liability would steer it away from allowing the children to stay with them.

³⁰ See e.g. Paul Todd 'Vicarious Liability on the Move But Where Should it Stop?' (2020) 7 Journal of International and Comparative Law 1; Simon Deakin 'Organisational Torts: Vicarious Liability versus Non-Delegable Duty' [2018] Cambridge Law Journal 15; John Murphy 'Juridical Foundations of Common Law Non-Delegable Duties' in Jason Neyers, Erika Chamberlain and Stephen Pitel (eds) *Emerging Issues in Tort Law* (Hart 2007).

³¹ Giliker **n4** 70–1.

³² Although see Robert Stevens 'Vicarious Liability or Vicarious Actions' (2007) 123 Law Quarterly Review 30.

³³ JW Salmond *Law of Torts* (1907); now in *Salmond & Heuston on the Law of Torts* (21st edn Sweet & Maxwell 1996) 443. See e.g. the Court of Appeal decision in *Trotman v North Yorkshire County Council* [1999] in which the court refused to find the employers of a school teacher who sexually abused a pupil vicariously liable because the abuse was not an unauthorised mode of carrying out an authorised act. *Trotman* was overruled by the House of Lords in *Lister*.

³⁴ He was subsequently sentenced to seven years' imprisonment for multiple offences involving sexual abuse.

³⁵ Bruce Feldthusen 'Vicarious Liability for Sexual Abuse' (2001) 9 Tort Law Review 173, 177.

³⁶ Paula Giliker 'Rough Justice in an Unjust World' (2002) 65 Modern Law Review 269. Compare e.g. *Weir v Chief Constable of Merseyside Police* [2003]—in which an off-duty police officer was found to be acting in the course of his employment when he assaulted a young man he found rummaging through his girlfriend's things by throwing him

down some stairs and locking him in the police van which he had borrowed to help his girlfriend move flat—with *N v Chief Constable of Merseyside Police* [2006]—in which a police officer who wore his police uniform to go ‘on the prowl’ for vulnerable young women, who he later raped and indecently assaulted, was held not to be acting in the course of his employment.

³⁷ This case was heard alongside *Cox v Ministry of Justice*. As Lord Reed explains: ‘The judgments are separate because the claims and issues are separate, but they are intended to be complementary to each other in their legal analysis’ (at [1]).

³⁸ See Giliker **n4** 62. See also criticism by the High Court of Australia in *Prince Alfred College v ADC* [2016].

³⁹ He was subsequently sentenced to 15 months’ imprisonment.

⁴⁰ He was convicted of inflicting GBH and ordered to pay £600 compensation.

⁴¹ He was subsequently convicted of GBH and sentenced to 12 years’ imprisonment.

⁴² Giliker **n4** 64.

⁴³ Andrew J Bell ‘Plus ça change, plus c’est la Vicarious Liability’ (2020) 36 *Journal of Professional Negligence* 150, 150.

⁴⁴ *ibid* 154.

⁴⁵ Giliker **n4** 67–8.

⁴⁶ Mark Sewell was later convicted of raping Mrs B and seven counts of indecently assaulting two other individuals.

⁴⁷ Mrs B had been successful at trial and in the Court of Appeal and had been awarded £62,000.

⁴⁸ By virtue of the fact that ‘as an elder Mark Sewell was carrying out work on behalf of, and assigned to him by, the Jehovah’s Witness organisation; that he was performing duties which were in furtherance of, and integral to, the aims and objectives of the Jehovah’s Witness organisation; that there was an appointments process to be made an elder and a process by which a person could be removed as an elder; and that there was a hierarchical structure into which the role of an elder fitted’ (Lord Burrows at [66]).

⁴⁹ Both ‘minor adjustments’ were aimed at ensuring the test was comprehensive—the reference to quasi-employment to ensure the inclusion of relationships ‘akin to employment’ and the removal the ‘superfluous and potentially misleading’ word ‘ordinary’ before employment to ensure the inclusion of sexual abuse cases, which could not ‘easily be said to fall within the “ordinary” course of employment’ (at [58](iii)).

⁵⁰ As applied by the Court of Appeal, where Davies LJ giving the leading judgment suggested that ‘in cases of this kind, the test is more open textured and requires an analysis of all aspects of the relationship between the tort and the abuser’s status’ (at [83]).

⁵¹ Jeremy Letwin and William Peck ‘A Grand Unified Theory for the “Close Connection Test” in Vicarious Liability Cases’ [2023] *Cambridge Law Journal* 388.

⁵² *ibid* 388.

⁵³ Giliker **n24** 194–5.

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